

25CV03180 The Mission LLC v. City of Santa Barbara

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

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Motion: Petition for Writ of Mandate

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Case Number

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Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 04/22/2026 - 10:00

Nature of Proceedings

Petition for Writ of Mandate

Tentative Ruling

For Petitioner and Plaintiff, The Mission LLC: Richard Jacobs

For Respondent and Defendant City of Santa Barbara: Eric S. Phillips, Caitlin R. Eliason, Burke, Williams & Sorensen, LLP; John S. Doimas, Marie Ostrenger, Delaney Satz, Office of the City Attorney

RULING

For the reasons set forth herein, the petition of The Mission LLC for issuance of a writ of mandate in its first, second, and fifth causes of action is denied.

Counsel will be prepared to discuss procedures for the resolution of the remainder of this matter at the hearing of this motion.

Background

(1) Project

Prior to the project that is now at issue, Petitioner The Mission LLC submitted preliminary applications to develop real property located at 505 East Los Olivos Street, Santa Barbara (the Property), starting with a project with four residential units on May 21, 2023. (Administrative Record [AR], at page AR001128.) (Note: Subsequent citations to the AR are in the form of AR [page number], where "AR" and leading zeros are omitted from the page number.) On June 3, 2023, Petitioner submitted another preliminary application for a project at the Property with 150 residential units. (AR 1113.) On June 4, 2023, Petitioner submitted another preliminary approval for a project at the Property with 200 residential units. (AR 1106.) On June 7, 2023, Petitioner submitted another preliminary approval for a project at the Property with 350 residential units. (AR 1099.) On November 1, 2023, Petitioner submitted another preliminary approval for a project at the Property with 240 residential units. (AR 1089.) On November 2, 2023, Petitioner submitted another preliminary approval for a project at the Property with 320 residential units. (AR 1075.)

On January 24, 2024, Petitioner submitted a preliminary application for a project consisting of 250 residential units with a floor area of 230,000 square feet (the Project), which superseded prior preliminary applications. (AR 578.)

On July 22, 2024, Petitioner submitted its development application for the Project (Development Application). (AR 449.)

On August 20, 2024, Respondent City of Santa Barbara (City) provided its first response (Response 1) to the Development Application notifying Petitioner that the application was incomplete. (AR 845-879.) Response 1 included:

"The Project is inconsistent with the City's General Plan Land Use Designation and Zoning designation. Although the applicant has invoked the 'Builder's Remedy' pursuant to Government Code Section 65589.5(d)(5) in connection with this application, note that the City has not yet determined if the Project is eligible for this provision. Moreover, if the City were to approve the Project as proposed, it would immediately result in a nonconforming use. In such situations, the California Department of Housing and Community Development has advised that a local government may require a General Plan Amendment and a Zone change in connection with an application seeking approval under Builder's Remedy. Accordingly, you must include a proposed General Plan Amendment (SBMC Ch. 30.235) and a Zone change (SBMC Ch. 30.235) that are compatible with the project as part of your application before the application will be found complete." (AR 858, fn. omitted.)

Petitioner objected to the City's determination of incompleteness. (AR 1022-1023.) The City responded by letter of September 13, 2024. (AR 836-844.) The September 13, 2024, letter stated with respect to the general plan amendment issue:

"Your email asserts that the City cannot require applications for a General Plan or zoning amendment in connection with projects that are eligible for the so-called Builder's Remedy. As noted above, the City has not yet evaluated the Project for consistency, and it has not made a determination regarding whether the Project is eligible for the provisions of Government Code section 65589.5(d)(5).

"Regardless, given HCD's most recent evaluation of General Plan or zoning amendment requests in other jurisdictions, the City agrees to waive any requirement to submit a General Plan or zoning amendment for purposes of evaluating whether the Application is complete pursuant to Government Code section 65943. Although no General Plan or zoning amendment request will be required for the City to find the Application complete, this does not preclude the City from determining that a General Plan or zoning amendment may be required for final approval of the Project, nor does this reflect a determination on the question of what entitlements will be required for, and what standards will apply to, final approval of the Project." (AR 843.)

On November 15, 2024, Petitioner submitted revisions to the Development Application (Development Application 2). (AR 354-391.) On December 13, 2024, the City provided its response (Response 2) to the Development Application 2 notifying Petitioner that the application was incomplete. (AR 789-835.) Response 2 is redlined to Response 1, eliminating matters by strikethrough text that were addressed by Development Application 2 and providing new comments based on Development Application 2. The above quoted language from Response 1 regarding general plan or zoning amendment is deleted in Response 2, with the following new addition:

"The City agrees to waive any requirement to submit a General Plan or zoning amendment for purposes of evaluating whether the Application is complete pursuant to Government Code section 65943, given the California Department of Housing and Community Development's most recent evaluation of General Plan or zoning amendment requests in other jurisdictions. Although no General Plan or zoning amendment request will be required for the City to find the Application complete, this does not preclude the City from determining that a General Plan or zoning amendment may be required for final approval of the Project, nor does this reflect a determination on the question of what entitlements will be required for, and what standards will apply to, final approval of the Project." (AR 808-809, underscoring omitted.)

Response 2 correspondingly deleted the statement that fees required prior to planning approval included a general plan amendment and zoning map/ ordinance amendment. (AR 810.) Response 2 concluded:

"Your application has been deemed 'incomplete;' however, pursuant to Santa Barbara Municipal Code section 30.205.105, you may appeal the staff's decision that additional information is required to complete your application. An appeal must be filed at the Community Development Department's Planning and Zoning Counter within 10 calendar days of the date of this letter. The appeal must consist of written notification indicating your grievance with the determination that your application is 'incomplete' and the appropriate appeal fee. The appeal will be scheduled for review by the Planning Commission and you will receive notice of the hearing date. [¶] Please be advised that this summary does not constitute a final review. The proposed project may be subject to additional standard City conditions. Revisions to your plans may result in additional comments or requirements." (AR 835.)

On December 18, 2024, Petitioner submitted further revisions to the Development Application (Development Application 3). (AR 238-284.) On January 15, 2025, the City provided its response (Response 3) to the Development Application 3 notifying Petitioner that the application was incomplete. (AR 738-788.) Response 3 did not make any changes from Response 2 with respect to the general plan/ zoning issues.

On April 12, 2025, Petitioner submitted further revisions to the Development Application (Development Application 4). (AR 119.) On May 12, 2025, the City provided its response (Response 4) to the Development Application 4 notifying Petitioner that the application was incomplete. (AR 685-737.) Response 4 did not make any changes from Response 2 or 3 with respect to the general plan/ zoning issues.

On May 13, 2025, counsel for Petitioner emailed a letter challenging the incompleteness determination in Response 4. (AR 948-951.)

On June 6, 2025, Petitioner submitted further revisions to the Development Application (Development Application 5). (AR 1.) On July 3, 2025, the City provided its response (Response 5) to the Development Application 5 notifying Petitioner that the application was now determined to be complete. (AR 631-684.)

On August 29, 2025, the City provided a "Consistency Review Letter." (AR 589-623.) "The purpose of this letter is to provide the findings of the City's review of the project application for consistency with objective standards and policies that were adopted and in effect as of January 29, 2024, the date the complete preliminary application for the project was submitted. On July 3, 2025, the City deemed the formal Planning Application complete and began evaluating the project for consistency with objective standards." (AR 589.) The Consistency Review Letter identifies multiple inconsistencies between the Project and City standards and policies.

(2) Procedural History

On May 22, 2025, Petitioner filed its original petition and complaint in this action. The petition asserted five causes of action: (1) writ of mandate (failure to process application as complete without payment of certain fees); (2) writ of mandate (imposing improper requirements on application); (3) declaratory and injunctive relief (failure to process applications); (4) declaratory and injunctive relief (imposing improper requirement on application); and (5) writ of mandate (compliance with former Gov. Code, § 65589.5, subd. (h)(6)(D) [now subd. (h)(6)(E)]).

On July 25, 2025, the City filed its demurrer to the original petition. On October 1, 2025, the Court sustained the demurrer, with leave to amend, as to the second and fourth causes of action and otherwise overruled the demurrer.

On November 18, 2025, Petitioner filed its first amended petition and complaint (FAP), asserting the same five causes of action. The FAP identifies that the second and fourth causes of action are moot as a result of the City's determination of completeness.

On January 12, 2026, the City filed its answer to the FAP, admitting and denying allegations therein and asserting 15 affirmative defenses.

Analysis

(1) Standard of Review

Petitioner's papers do not discuss the appropriate standard of review. The FAP largely seeks to enforce the Housing Accountability Act (HAA, Gov. Code, § 65589.5). (See FAP, ¶¶ 69-75.) Under Government Code section 65589.5, subdivision (m)(1), "[a]ny action brought to enforce the provisions of this section shall be brought pursuant to Section 1094.5 of the Code of Civil Procedure" Code of Civil Procedure section 1094.5 sets forth the conditions for issuance of an administrative writ of mandate.

"The inquiry in such a case shall extend to the questions whether the Respondent has proceeded without, or in excess of, jurisdiction; whether there was a fair trial; and whether there was any prejudicial abuse of discretion. Abuse of discretion is established if the Respondent has not proceeded in the manner required by law, the order or decision is not supported by the findings, or the findings are not supported by the evidence." (Code Civ. Proc., § 1094.5, subd. (b).)

"In any action taken to challenge the validity of a decision by a city, county, or city and county to disapprove a project or approve a project upon the condition that it be developed at a lower density pursuant to Section 65589.5, the city, county, or city and county shall bear the burden of proof that its decision has conformed to all of the conditions specified in Section 65589.5." (Gov. Code, § 65589.6.)

(2) Requests for Judicial Notice

In support of its opposition, the City requests that the Court take judicial notice of: (City 1st Request for Judicial Notice, exhibit A) Santa Barbara Municipal Code section 30.205.150. This request for judicial notice is granted. (See Evid. Code, § 452, subds. (b), (c).)

The City's second request for judicial notice was filed after Petitioner's reply. In addition to requesting matters for judicial notice, the request responds to matters raised for the first time in reply. All of these matters are outside of the scope of the

claims asserted in this action and unripe for determination here as discussed below. Accordingly, the second request for judicial notice is denied as irrelevant. (See *Mangini v. R. J. Reynolds Tobacco Co.* (1994) 7 Cal.4th 1057, 1063.)

(3) Status of Petitioner's Claims

In the FAP, Petitioner alleges: "First, and most importantly, the City has now admitted that the application is 'complete.' This means that the causes of action that were originally asserted are largely moot and will simply be the subject of a catalyst theory attorney's fees motion." (FAP, ¶ 2.) According to Petitioner's allegations: "The remaining issue regarding completeness is the City's insistence upon a General Plan Amendment and Zoning Amendment along with the associated applications and fees" which "are encapsulated in Causes of Action 1 and 3." (FAP, ¶ 4(a), (b).) "The remaining issue regarding Code of Civil Procedure Section 65589.5(h)(6)(D) is how the Court addresses the presumptions in the case based upon the failure by the City to participate in the (h)(6)(D) process," which "is encapsulated in Cause of Action 5." (FAP, ¶ 4(f), (g).) Causes of action 2 and 4 are now moot. (FAP, ¶ 4(j)-(l).) City argues that all of these matters are either moot or not ripe as to this proceeding.

Petitioner also alleges that "[t]here is a new list of items that need to be addressed, either in a separate action or in a new lawsuit, regarding the 'consistency' analysis (which is conducted after the 'completeness' analysis. Plaintiff/Petitioner will consult with the Court at the next hearing on whether the Court wishes to allow leave to amend to add causes of action regarding consistency or whether it needs to be addressed in a new lawsuit." (FAP, ¶ 4(m).) The Court will not address new items in this proceeding.

(4) General Plan/ Zoning Amendment Issues

Petitioner argues that the general plan and zoning issues are not moot because the City states that it is not precluded from determining that a general plan or zoning amendment may be required for final approval of the Project and that the City's determination of completeness does not reflect a determination of what entitlements will be required for, or standards that will apply to, final approval of the Project. (See AR 651.)

On the record presented, the Court finds that the City is not now requiring the payment of fees with respect to a general plan or zoning amendment. The Court also finds that the City is not now requiring either a general plan or zoning amendment for final approval of the Project. Given the present state of the administrative process, the City is instead reserving its rights to make a determination on final approval depending upon the circumstances existing when final approval is to be made.

"A concept distinct from but similar to the exhaustion requirement is that there be a 'ripe controversy.' Ripeness looks at whether a controversy is 'definite and concrete.' 'The ripeness doctrine prevents Courts 'from entangling themselves in abstract disagreements over administrative policies,' and protects administrative agencies from 'judicial interference until an administrative decision has been formalized and its effects felt in a concrete way by the challenging parties.'" [Citation.]" (*Casa Blanca Beach Estates Owners' Assn. v. County of Santa Barbara* (2024) 102 Cal.App.5th 1303, 1309 (*Casa Blanca*).) "An administrative decision is final, i.e., ripe, 'when the agency has exhausted its jurisdiction and possesses "no further power to reconsider or rehear the claim." ' [Citation.] 'Until a public agency makes a final decision, the matter is not ripe for judicial review.' [Citations.]" (*Ibid.*)

The record here ends with the City's determination that the application is complete. The record does not show any final determination on the Project; the record does not show a final determination not to proceed with required review of the Project on the basis of a required general plan or zoning amendment or on the basis of a failure to pay fees associated with such an amendment. The Court therefore determines that the claim asserted in the FAP as to completeness relating to general plan or zoning amendments is moot and that further issues relating to those potential amendments are not ripe for judicial determination. On that basis, the Court determines that the first cause of action application for a writ of mandate is denied.

Insofar as Petitioner asserts an entitlement to attorney fees under a catalyst theory, the Court will determine attorney fee issues by noticed motion when and as appropriate.

(5) HAA Process

The remaining issue claimed by Petitioner involves City compliance or noncompliance with section 665589.5, subdivision (h)(6)(E). (Note: Subdivision (h)(6)(E) was formerly subdivision (h)(6)(D) without substantive change. The Court will refer to the current subdivision lettering "(E)" unless otherwise noted.)

"The following definitions apply for the purposes of this section: [¶] ... [¶]

"(6) 'Disapprove the housing development project' includes any instance in which a local agency does any of the following: [¶] ... [¶]

"(E) Fails to cease a course of conduct undertaken for an improper purpose, such as to harass or to cause unnecessary delay or needless increases in the cost of the proposed housing development project, that effectively disapproves the proposed housing development without taking final administrative action if all of the following conditions are met:

"(i) The project applicant provides written notice detailing the challenged conduct and why it constitutes disapproval to the local agency established under Section 65100.

"(ii) Within five working days of receiving the applicant's written notice described in clause (i), the local agency shall post the notice on the local agency's internet website, provide a copy of the notice to any person who has made a written request for notices pursuant to subdivision (f) of Section 21167 of the Public Resources Code, and file the notice with the county clerk of each county in which the project will be located. The county clerk shall post the notice and make it available for public inspection in the manner set forth in subdivision (c) of Section 21152 of the Public Resources Code.

"(iii) The local agency shall consider all objections, comments, evidence, and concerns about the project or the applicant's written notice and shall not make a determination until at least 60 days after the applicant has given written notice to the local agency pursuant to clause (i).

"(iv) Within 90 days of receipt of the applicant's written notice described in clause (i), the local agency shall issue a written statement that it will immediately cease the challenged conduct or issue written findings that comply with both of the following requirements:

"(I) The findings articulate an objective basis for why the challenged course of conduct is necessary.

"(II) The findings provide clear instructions on what the applicant must submit or supplement so that the local agency can make a final determination regarding the next necessary approval or set the date and time of the next hearing.

"(v) (I) If a local agency continues the challenged course of conduct described in the applicant's written notice and fails to issue the written findings described in clause (iv), the local agency shall bear the burden of establishing that its course of conduct does not constitute a disapproval of the housing development project under this subparagraph in an action taken by the applicant.

"(II) If an applicant challenges a local agency's course of conduct as a disapproval under this subparagraph, the local agency's written findings described in clause (iv) shall be incorporated into the administrative record and be deemed to be

the final administrative action for purposes of adjudicating whether the local agency's course of conduct constitutes a disapproval of the housing development project under this subparagraph.

“(vi) A local agency's action in furtherance of complying with the California Environmental Quality Act (Division 13 (commencing with Section 21000) of the Public Resources Code), including, but not limited to, imposing mitigating measures, shall not constitute project disapproval under this subparagraph.” (Gov. Code, § 65589.5, subd. (h)(6)(E).)

The basis for the dispute over the effects of subdivision (h)(6)(E) is Petitioner's May 13, 2025, letter (May 13 Letter) challenging the incompleteness determination in Response 4. The May 13 Letter states in part:

“My client, THE MISSION LLC, received the City of Santa Barbara's incomplete letter dated May 12, 2025 on their Builder's Remedy project. While my client has been willing to address the many improper, and in several cases illegal, requirements imposed by the City to date, this fourth letter is apparently entirely in bad faith and designed to harass and cause unnecessary delay and needlessly increase the cost of the proposed housing development project. I understand that the City is doing everything it can to block this project as it is a Builder's Remedy project. However, the City is still bound by the State Housing Laws, including the Permit Streamlining Act, the Housing Crisis Act, the Housing Accountability Act, and others. The City is in violation of those laws.

“As such, we are therefore requesting that the City rescind the letter and deem the application complete or institute the necessary procedures as called for under [former] California Government Code Section 65589.5(h)(6)(d) [, now subdivision (h)(6)(E)]. ¶¶ ... ¶¶

“Please confirm that the City will rescind the illegal incomplete letter dated May 12, 2025 and provide a complete determination or we will be forced to move forward with alternative means, including litigation and submission of the City's illegal actions to the appropriate people.” (AR 949, 951.)

The original petition was filed on May 22, 2025. On June 6, 2025, Petitioner submitted Development Application 5, which the City determined to be complete by its July 3, 2025, Response 5.

The May 13 Letter is ambiguous. Under subdivision (h)(6)(E)(i), the project applicant must provide “written notice detailing the challenged conduct and why it constitutes disapproval to the local agency established under Section 65100.” The May 13 Letter addresses five specific items which Petitioner asserts are not required for a determination of completeness, but the May 13 Letter does not expressly state that this conduct constitutes “disapproval.” The May 13 Letter requests that the City either rescind Response 4 or institute the procedures under subdivision (h)(6)(E), but does not unequivocally invoke the subdivision (h)(6)(E) procedures as of the date of the letter. The text suggests that City should take one action or the other, but does not reasonably suggest that the City must then immediately follow the procedures of subdivision (h)(6)(E) with timing starting from May 13.

Petitioner's actions subsequent to the May 13 Letter provide further ambiguity in construing the May 13 Letter. The original petition alleges that the five-day period for posting required by subdivision (h)(6)(E)(ii) was triggered by the May 13 Letter. (Petition, ¶¶ 64-68.) But, on June 6, 2025, shortly after the petition was filed, Petitioner submitted Development Application 5 that substantively addressed the issues raised in Response 4. For example, the comment regarding Proposed Floor Area in Response 4 is:

“Your April 12, 2025, response letter states that the Residential Net Floor Area by Unit/ Floor Level tables are updated and correct, and points to Sheet G001.b; however, the data included in the Residential Net Floor Area by Unit/Floor Level

(Sheet G0001.b) does not include square footage information (it appears the associated columns have been cut off). Please provide the complete table, including square footage.” (AR 688.)

The May 13 Letter with respect to this comment is: "This is referenced in the Project Plan Submittal Guide. Therefore, we provided it. Your letter claims that the proposed floor area is not provided. The net and gross area were provided. This claim has no basis in fact." (AR 950.)

Petitioner's comment in replying to the Response 4 comment is: "The table has been expanded to show the cut-off values – tables are updated and correct. See revised sheet G001. [¶] Please see the provided summary table provided for easy reference to project data." (AR 5.)

Development Application 5 demonstrates that Petitioner was not standing unequivocally upon the completeness of Development Application 4 and, at least in part, the City's request for further information was based on information that apparently Petitioner intended to include in Development Application 4 but actually did not. This gives rise to a reasonable inference that the May 13 Letter comments such as "this claim has no basis in fact" is exaggerated. With this additional information—required or not—the City found Development Application 5 complete.

Taken together and weighing the competing inferences, the Court finds that the May 13 Letter did not satisfy the requirement of subdivision (h)(6)(E)(1) to "detail the challenged conduct and why it constitutes disapproval."

Based upon this finding, the Court determines that the fifth cause of action application for a writ of mandate compelling compliance with Government Code section 65589.5, subdivision (h)(6)(E) is denied as to the alleged noncompliance immediately following the May 13 Letter. To the extent that Petitioner seeks by this cause of action writ relief as to other or later conduct, the application for writ is denied as not ripe for adjudication.

(6) Conclusion

As discussed above, Petitioner's first cause of action application for issuance of writ of mandate is denied as moot. Petitioner has conceded that the second cause of action application for issuance of writ of mandate is moot. As also discussed above, Petitioner's fifth cause of action application for issuance of writ of mandate is denied.

Petitioner's remaining causes of action are for declaratory relief. Petitioner concedes that its fourth cause of action for declaratory relief is moot. Petitioner's third cause of action for declaratory relief is not within the scope of this proceeding to determine the applications for issuance of writs of mandate.

If the parties don't stipulate to resolving these causes of action then the City is directed to file a motion for judgment on the pleadings. If the motion is successful, then the matter is teed up for judgment; if the motion is not, then the matter is teed up for a Court trial.

Judges

Judge Thomas Anderle

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